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Gilroy shooting happened despite strict California gun laws. What more can state lawmakers do?

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In the echoes of gunshots that killed three people and injured a dozen more during a garlic festival in Gilroy on Sunday, California lawmakers responded with the legislative message that while the Golden State has some of the strictest gun control laws, there's still work to be done.

"No more thoughts and prayers," Assemblyman Phil Ting, a San Francisco Democrat, wrote on Twitter. "Time to take more action so we can go to work, school and festivals in peace without fear of getting shot."

Ting is among a handful of lawmakers championing bills to increase gun control that are still being considered in the Capitol, now that the 2019 session is halfway through.

But it's likely that the shooting will refresh reform conversations once the Legislature reconvenes from a summer break on Aug. 12.

Here's what could come next in California's effort to end gun violence.

Limiting firearm purchases

To stymie the flow of weapons into the market, Senate Bill 61 would prohibit anyone from purchasing more than one firearm, specifically long guns, per month.

The legislation also prohibits selling semiautomatic rifles to any person under 21.

The Gilroy gunman, identified as Santino William Legan, was 19. He was killed by police shortly after using what witnesses described as a rifle to gun down festival attendees, including a 6-year-old boy who was shot dead.

Former Gov. Jerry Brown vetoed similar bills in 2016 and 2018.

"We cannot let violent gun tragedies become normalized and California must continue every effort on getting guns out of the wrong hands, which included this teen," the bill's author and longtime gun reform advocate state Sen. Anthony Portantino, D-La Cañada Flintridge, said.

When introducing the bill in January, Portantino said that "one-gun purchase per month should be more than adequate for the law-abiding citizen."

"California may be a Western State, but it's no longer the Wild West," he said. "A person shouldn't be able to walk into a gun store and come out with an arsenal."

Expanding gun violence restraining orders

The Gun Violence Restraining Order law in California allows family members, spouses and domestic partners to report someone with a gun if they pose a danger to themselves or others.

Ting introduced legislation that would expand who can petition a court for an order to include an employer and coworker, as well as school faculty members. Brown also vetoed similar legislation twice before.

“The idea of the law is that for those who have direct contact with a person, they may be the first to see trouble and these warning signs,” said Amanda Wilcox, legislation and policy chair for California’s Brady United Against Gun Violence campaign. “It might not be a family member that sees the warnings signs, so this would enable others who have direct contact to seek the order.”

Increasing restraining order training

Another Brady-backed bill would require the Commission on Peace Officer Standards and Training to ramp up training on gun violence restraining orders.

Current basic training does not touch on these orders, according to the analysis on Assembly Bill 165. Effective January 2021, this proposal would mandate the basic training to include filing a petition for the orders, and aiding officers in identifying when one is necessary.

Assemblyman Jesse Gabriel, D-Encino, wrote the bill, and is also a member of the Legislature’s gun violence prevention working group that was founded in collaboration with former U.S. Rep. Gabrielle Giffords of Arizona.

“The tragic events in Gilroy are a further reminder that thoughts and prayers from Washington won’t keep us safe,” Gabriel said in a statement. “Gun violence restraining orders are a powerful tool that can help prevent mass shootings by allowing police to temporarily confiscate weapons from individuals who pose an immediate threat to the community.”

A companion measure, Assembly Bill 339, requires police departments to implement upgraded standards and policies related to commission training.

Because there isn’t a “statewide template” for administering the orders, Wilcox said the measure will allow smaller towns to work with the resources they have to implement new policies.

Increase funding to remove guns

The California Department of Justice oversees the Armed Prohibited Persons System, which removes firearms from those who illegally possess them.

But there’s a growing backlog in the thousands that the department has struggled to eliminate.

The department works with local law enforcement agencies to remove the weapons, which is why Assemblywoman Jacqui Irwin, D-Thousand Oaks, authored a bill to implement a pilot program that increases their investigative authority.

Alameda, San Diego, Santa Cruz and Ventura Counties would obtain a grant to put together a Disarming Prohibited Persons Taskforce team, comprised of police, agents, sheriff’s department officials, Bureau of Investigations members and county probation officers.

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